		the notice deficiency. (Plaintiff's Opp., Exh. E) Accordingly, the Court's strong inclination is to deny leave to amend.
10	**Roe 26 A.B. vs. Anaheim Union High School District** **2025-01503960**	**Gizem Gures's Motion to Be Relieved as Counsel of Record** **Motion to Be Relieved as Counsel of Record** Slater, Slater & Schulman LLP moves to be relieved as counsel for Plaintiffs Jane Roe 27 M.M. and Jane Roe 33 B.G. The motion is GRANTED. Counsel has met the requirements of CCP § 284 and CRC 3.1362. The two orders will be effective upon the filing of proof of service on the clients.
11	**Asset Management Consultants, Inc. vs. Catlin Specialty Insurance Company** **2015-00824125**	**Defendant's Demurrer to Complaint** **Defendant's Motion to Strike Complaint** **<u>CATLIN SPECIALTY INSURANCE'S DEMURRER TO THE SECOND AMENDED COMPLAINT (2AC)</u>** Catlin's demurrer to the Basso Plaintiffs' sixth cause of action (fraud) in the 2AC is SUSTAINED WITHOUT LEAVE TO AMEND. The gist of the sixth cause of action is that Catlin (and insurance broker Brown and Riding Insurance Services, Inc.) fraudulently concealed the fact that, contrary to Plaintiffs' instructions, the insurance policy at issue included a self-insured retention of $150,000 and excluded SLB from coverage. The Court previously sustained Catlin's demurrer to this claim. In the First Amended Complaint, the Basso Plaintiffs pled they received letters in July and November 2013 informing them of the SIR and the exclusion of SLB. The FAC was filed in July 2018, more than three years later, and the fraud claim did not relate back to the original complaint. As a result, it was untimely. The Basso Plaintiffs were granted leave to amend. The Basso Plaintiffs now argue the delayed discovery rule should toll accrual of the fraud claim. In the 2AC, the Basso Plaintiffs continue to admit that they received letters about the SIR and the exclusion of SLB in July and November 2013. However, they allege that they understood these letters to be mistakes or errors. With respect to the July 2013 letter, they allege: "Because the Policy did not actually reference any such retention and Plaintiffs had not been provided with any endorsement or other information suggesting that there was, in fact, a retention, this comment by Linville appeared to be a simple mistake and did not, in any way, suggest that Catlin and Brown were attempting to secretly modify the policy to add in a retention without the knowledge of Plaintiffs. Plaintiffs did not first learn of this was not merely a typographical error but was, in fact, part of a scheme to create the illusion of a retention that did not actually exist until it was disclosed in discovery in this litigation less than three years before first alleging this cause of action." (2AC ¶ 332.) Similarly, with respect to the November 2013 letter, they allege: "In fact, because Plaintiffs understood that SLB was a named insured under the Policy at the time they paid their premium, they knew that the endorsement [deleting SLB] was an error and had not be[en] agreed to by the parties. Because they were unaware of the secret discussions between Brown and Catlin, they were unaware that this purported endorsement was actually a part of a long-standing fraud until those discussions were disclosed in discovery in this litigation less than three years before first alleging this cause of action." (2AC ¶ 355.) "An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. . . . In other words, plaintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the